



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00125 Bison Business Park, 2nd Filing Annexation
Date: June 8, 2021

Revised Ordinance:

After further discussions between City Staff and the Wyoming Department of Transportation (WYDOT), it was determined that it would not be in the best interest of the City to annex the portions of South Greeley Highway (US 85) adjacent to Bison Business Park at this time. A revised annexation map (dated 5/28/2021) and a revised annexation Ordinance (dated 6/3/2021) have been submitted removing the South Greeley Highway right-of-way from this annexation.

Staff recommends approval of the substitute Ordinance and revised map.

Related Items:

- Bison Business Park, 2nd Filing Zone Change (UDC-21-00126)
- Bison Business Park, 2nd Filing Final Plat (UDC-21-00127)

Attachments:

1. Revised Ordinance (dated 6/3/2021)
2. Revised Annexation Map (dated 5/28/2021)

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED EAST OF SOUTH GREELEY HIGHWAY (US 85), NORTH OF CHALK BLUFF ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Arp and Hammond Hardware Company; Lummis Livestock Company, LLC; and the Wyoming Department of Transportation (WYDOT), owners of:

A parcel of land located in portions of Sections 32 and 33, Township 13 North, Range 66 West of the Sixth Principal Meridian, Laramie County, Wyoming and being more particularly described by metes and bounds as follows:

Beginning at the section corner common to sections 28, 29, 32 and 33; thence along the north line of said section 33 S89°42'44"E a distance of 2636.27 feet to the north one-quarter corner of said section 33; thence along the north-south center section line of said Section 33 S00°08'28"W a distance of 5242.81 feet to a point on the north right of way of Chalk Bluff Road; thence along said north right of way N89°51'32"W a distance of 1744.77 feet to a point of intersection of said north right of way and the easterly right of way of US Highway 85; thence along said easterly right of way the following courses and distances: N25°52'10"W 5549.46 feet to a point on the south property line of Lot 1, Block 1, Bison Business Park; thence along said south property line N64°07'39"E a distance of 603.84 feet to a point on the north line of said Section 33; thence S89°42'35"E a distance of 337.22 feet to a point; thence S89°42'21"E a distance of 662.27 feet more or less to the point of beginning.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Adam E. Deschler, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 12045; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned A-2 Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation

ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____

